

PRC Regulations on Countering Improper Extraterritorial Jurisdiction by Foreign States (State Council Order 835), 7 April 2026

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Article 1:These Regulations are formulated on the basis of laws such as the People's Republic of China [PRC] National Security Law, the PRC Foreign Relations Law, the PRC Law on Countering Foreign Sanctions, in order to preserve national sovereignty, security, and development interests, preserve the lawful rights and interests of Chinese citizen's and organizations, and preserve the international order with international law as its foundation.

Article 2:Efforts to counter the improper extraterritorial jurisdiction of foreign states are to adhere to the holistic view of national security, coordinate development and security, coordinate the domestic and international, preserve the system of socialism with Chinese characteristics, and promote the construction of a more just and reasonable system of global governance.

Article 3:The People's Republic of China adheres to a peace-oriented foreign policy that is independent and self-directed, opposes hegemony and power politics, and opposes interference in China's internal affairs by any country, using any pretext, and in any manner.

Where foreign states violate international law and the basic norms of international relations by implementing measures with improper extraterritorial jurisdiction, endangering China's national sovereignty, security, and development interests, and harming the legitimate rights and interests of Chinese citizens and organizations, the Chinese government has the right to take corresponding measures.

Article 4:Based on the laws of the People's Republic of China and the international treaties that it has concluded or joined, or in accordance with the principle of reciprocity, the Chinese government has the right to exercise extraterritorial jurisdiction measures over acts that are appropriate connected to China, in order to safeguard national sovereignty, security, and development interests, and protect the legitimate rights and interests of Chinese citizens and organizations.

Where the Chinese government has jurisdiction over relevant acts in accordance with the preceding paragraph, and a foreign state claims jurisdiction over the same act, the two parties may resolve the matter on the basis of mutual compliance with international law and the basic norms of international relations by concluding treaties or through diplomatic channels or consultation between competent departments.

Article 5: The State is to establish and complete a working mechanism related to addressing improper extraterritorial jurisdiction by foreign states (hereinafter referred to as the "working mechanism") to plan and coordinate efforts responding to improper extraterritorial jurisdiction by foreign states.

In accordance with their respective duties, the relevant State Council departments are to undertake specific efforts to respond to improper extraterritorial jurisdiction by foreign states. The relevant State Council departments and other relevant organs shall strengthen coordination, cooperation, and information sharing on identifying and responding to extraterritorial jurisdiction measures by foreign states.

Article 6: The State Council legal affairs department, in conjunction with other relevant organs, is to carry out efforts to identify improper extraterritorial jurisdiction measures taken by foreign states, and may conduct investigations and consultations with foreign parties. Relevant organizations and individuals may submit suggestions on carrying out identification work to the State Council legal affairs department.

Efforts to identify improper extraterritorial jurisdiction measures taken by foreign states shall comprehensively consider the following factors:

- (1) Whether international law and basic norms of international relations are violated;
- (2) Whether the conduct subject to the foreign state's extraterritorial jurisdiction has an appropriate connection with that state;
- (3) Whether China's national sovereignty, security, and development interests are endangered, and whether the lawful rights of China's citizens or organizations are harmed;
- (4) Other factors that should be considered.

Where relevant measures are identified as constituting improper extraterritorial jurisdictional measures taken by a foreign state, the State Council legal affairs department may announce it. Organizations and individuals must not implement or assist in implementing improper extraterritorial measures taken by foreign states.

Where, due to special circumstances, Chinese citizens or organizations truly need to implement or assist in implementing improper extraterritorial measures taken by foreign states, they shall apply to the State Council legal affairs department and provide related facts, reasoning, the scope of necessary implementation or assistance in implementation, and so forth, they may implement, or assist in implementing, the relevant measures within the specified scope after getting approval in accordance with the working mechanism's decision-making procedures.

Article 7: The Chinese government may conduct assessments of the improper extraterritorial measures taken by foreign states, determine the risk level, and employ countermeasures and restrictions in areas such as diplomatic affairs, entry and exit, trade, investment, international cooperation, and foreign aid, in accordance with law.

Article 8: In accordance with the working mechanism's decision-making procedures, the relevant State Council departments may enter organizations and individuals who implement or participate in the implementation of improper extraterritorial measures taken by foreign states into a list of Malicious Entities, and may make a decision to employ one or more of the countermeasures or restrictions below against them in accordance with the PRC Law on Countering Foreign Sanctions or the Provisions on the Implementation of the Law on Countering Foreign Sanctions, and announce it:

- (1) Not issuing a visa, not allowing entry, canceling a visa, or requiring departure in a set period, deportation, or expulsion;
- (2) Cancelling or restricting the qualifications of relevant persons to work, stay, or reside in China;
- (3) Sealing, seizing, or freezing movable property, immovable property, or other types of assets within China;
- (4) Prohibiting or restricting organizations and individuals within China from providing them with data or personal information, or from conducting activities, such as transactions and cooperation, with them;
- (5) Prohibiting or restricting their engagement in import/export activities related to China;
- (6) Prohibiting or restricting their investment within China;
- (7) Prohibiting or restricting the entry of their products or transportation into China;
- (8) Fines;
- (9) Other necessary measures.

The measures provided for in the preceding paragraph may also be applied to organizations that organizations or individuals on the Malicious Entity List actually control or participated in the establishment and operation of.

Article 9: Organizations and individuals who are subject to countermeasures or restrictions may apply to the relevant State Council departments that made the countermeasure or restriction decisions for a suspension, modification, or cancellation of the relevant measures, and when applying, they shall provide facts and reasoning in areas such as their correcting their conduct and employing measures to eliminate the consequences of their conduct.

Based on the actual circumstances, the relevant State Council departments that made the decision to employ countermeasures or restrictions may organize assessments of the countermeasures or restrictions' implementation and efficacy.

Based on the outcome of the assessment or the investigation of related applications, the relevant State Council departments that made the decision to employ countermeasures or restrictions may make a decision to suspect, modify, or cancel the relevant countermeasures or restrictions in accordance with the working mechanisms' decision-making procedures, and announce it.

Article 10: Where the relevant countermeasures or restrictions need to be implemented by other State Council departments, the State Council department that made the decision to employ, suspend, modify, or cancel countermeasures or restrictions shall report the decision related to the countermeasures or restrictions to the relevant State Council departments responsible for implementation, in accordance with the procedures of the working mechanism.

Relevant State Council departments receiving the decisions related to countermeasures or restrictions shall implement them in accordance with their duties and division of labor.

Article 11: In special situations where the relevant organizations or individuals truly need to conduct prohibited or restricted activities with organizations or individuals subject to countermeasures or restrictions, they shall apply to the relevant State Council department that made the decision to employ the countermeasures or restrictions and provide corresponding facts and reasoning, and they may conduct the relevant activities with the organizations or individuals subject to countermeasures or restrictions after approval in accordance with the work mechanism's decision-making procedures.

Article 12: The relevant State Council departments may employ measures such as on-site inspections and reading or reproducing relevant materials against organizations and individuals suspected of implementing or assisting in implementing improper extraterritorial measures taken by foreign states. The relevant organizations and individuals shall assist and cooperate, and must not refuse or impede.

Article 13: The relevant State Council departments may conduct compliance conferences with organizations and individuals who implement or assist in implementing improper extraterritorial measures taken by foreign states, and order them to make corrections.

In accordance with the working mechanism's decision-making procedures, the State Council legal department may make a decision to order organizations and individuals who are implementing or assisting in implementing improper extraterritorial measures taken by foreign states to stop doing so. (hereinafter referred to as an "injunction") The relevant organizations and individuals shall comply with injunctions.

Article 14: Where any organization or individual implements or assists in implementing improper extraterritorial measures taken by foreign states, infringing on the lawful rights and interests of Chinese citizens or organizations, those Chinese citizens or organizations may initiate litigation in the people's courts requesting that the infringement stop and that losses are compensated.

Article 15: In accordance with their duties and division of labor, relevant departments of people's governments at the provincial-level and above are to provide Chinese citizens and

organizations with guidance and services related to responding to improper extraterritorial jurisdiction by foreign states.

Article 16: Industry associations and chambers of commerce are to play a role in industry self-discipline and coordination in accordance with laws, regulations and their charters, guiding members to do business lawfully and compliantly and to promptly give feedback on industry requests, and provide members with market expansions, rights protections, dispute resolution, and services in other areas related to responding to improper extraterritorial jurisdiction measures taken by foreign states.

Article 17: The relevant State Council departments may order those refusing to implement or avoiding implementation of the countermeasures, restrictions, or injunctions provided for in these Regulations to make corrections, prohibit or restrict their engagement in activities such as government procurement and bidding, or the import/export of related goods and technology and trade in international services, prohibit or restrict their receipt or provision of data or personal information outside of China, prohibit or restrict their exit and entry, stay, or residence in China, give fines, and so forth.

Article 18: Where violations of these Regulations constitute a crime, criminal responsibility is to be pursued in accordance with law.

Article 19: Where efforts to counter improper extraterritorial jurisdiction by foreign states involve related efforts on countering corruption, anti-trust, countering unfair competition, export controls, data security, or judicial assistance, and there are separate provisions in laws and regulations, follow those provisions.

Where the state has other provisions on responding to foreign states' violations of international law and basic norms of international relations, improperly prohibiting or restricting Chinese citizens and organizations' conduct of normal economic and trade activities and related activities with third countries (regions) or their citizens and organizations, follow those provisions.

Article 20: This Regulation takes effect on the date of promulgation.